

Form No.HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

ICA No. 133400 of 2018

Saifullah

vs

Inspector General, Punjab Police, Lahore & 21 others

S.No. of Order/ Proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel where necessary
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07.03.2019 Mr. Saif Ullah Maan, Advocate for appellant.
Mr. Umer Farooq Khan, Advocate for respondent No.4.

Through this single order, we intend to decide this appeal alongwith connected matter (ICA No.133411 of 2018) as common question of law and facts is involved in both the matters.

2. Through these Intra Court Appeals filed under Section 3 of the Law Reforms Ordinance, 1972, the appellants have called in question the judgment dated 14.12.2017 passed by learned Single Judge in Chambers, whereby the constitutional petitions, filed by the appellants, were dismissed.

3. Brief facts of the case are that the appellants applied for the post of Police Constable/DC Operators (BS-5) and appeared in the NTS test as well as in interview and were declared successful in terms of merit list dated 15.10.2015, despite that their appointment letters were not issued, for which purpose they filed an application with the respondent department. However, instead of appointing the appellants, the respondent department created a new post of Police Communications

Specialist/ Communication Officer through advertisement dated 06.03.2016 and subsequently appointed candidates against the said post whereas the appellants, who were declared successful in interview, have not been appointed. Feeling aggrieved of the said inaction on the part of the respondent department, the appellants filed constitutional petitions (WP No.104 of 2017 and 23675 of 2016) which were dismissed vide judgment dated 14.12.2017. The said judgment is under challenge by filing instant Intra Court Appeals.

4. Learned counsel for the appellants has argued that the impugned judgment has been passed in a slipshod manner without appreciating the facts and circumstances of the case; that since the names of the appellants were mentioned in the final merit list, therefore, vested right has accrued in their favour on the basis of which they are entitled to be appointed on the said posts.

5. Conversely, learned counsel appearing on behalf of respondent No.4/department has contested these appeals by maintaining that after establishment of the Punjab Safe Cities Authority ("PSCA") for quick response to the emergencies within the different cities, the earlier recruitment process of DC Operators has been scrapped and a fresh advertisement for recruitment of Communications Specialist was issued on 06.03.2016 in which the eligibility criteria has been improved to meet the requirement of handling specialized equipment; that the appellants were informed that posts of DC Operators have been abolished.

6. Heard. Record perused.

7. So far as the argument of the learned counsel for the appellants that vested right for appointment has been accrued in favour of the appellants for having passed the interview, it is pertinent to mention here that right to employ an employee vests with the employer only who in its discretion can scrap the recruitment process before its finalization and employee cannot claim that the employer be directed to complete the recruitment process as his vested right. Reliance in this regard is placed on the judgment reported as Dr. Mubashar Ahmed vs. P.T.C.L. through its Chairman, Islamabad and another (2004 SCMR 1673). Mere qualifying in written examination and interview does not vest a candidate with a fundamental right for appointment enforceable in exercise of constitutional jurisdiction of this Court unless the competent authority has approved such selection. Reference may be made to the judgment reported as Secretary Finance and others vs. Ghulam Safdar (2005 SCMR 534). Same principle has been reiterated in Riaz Gul and 5 others vs. Federation of Pakistan through Secretary, Ministry of Water and Power, Government of Pakistan, Islamabad and 36 others (2016 PLC (C.S.) 350). Moreover, the merit list relied upon by the learned counsel for the appellants only mentions the names of candidates declared as successful in interview and these candidates still had to undergo further procedure including antecedent verification and medical test before any final notification could be issued. There is nothing on the record to show that competent authority had approved the appointment of the appellants on afore referred posts. Therefore, by any stretch of imagination

the said list cannot be considered as final merit list. Moreover, re-designation of post and fixing of a different criterion for appointment against the same is well within the executive policy making domain of the provincial government which cannot be interfered with unless some illegality or violation of law is pointed out. Reliance in this regard is placed on Muhammad Farid Khattak and others vs. Chief Secretary, Government of N.W.F.P. and others (2009 SCMR 980), Government of Khyber Pakhtunkhwa through Chief Secretary, Peshawar and others vs. Hayat Hussain and others (2016 SCMR 1021) and Executive District Officer (Revenue), District Khushab at Jauharabad and others vs. Ijaz Hussain and another (2011 SCMR 1864). Consequently no ground to interfere with impugned judgment, whereby constitutional petitions filed by the appellants have been dismissed, is made out in the given circumstances of the case.

8. For what has been discussed above, these appeals being devoid of any merit are *dismissed*.

(Muhammad Sajid Mehmood Sethi) (Muzamit Akhtar Shabir)
Judge Judge

Naveed
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Approved for reporting

Blue tip is
correct.
Ajaz
19/3/19